The overbreadth of the Fifth Circuit's rule (the fact that it almost always is satisfied) makes it patently incompatible with an inadvertence-or-mistake standard, which suggests that circumstances—and outcomes—may vary. A near-dispositive criterion is a poor fit for a fair inquiry into whether an omission is *actually* the result of inadvertence or mistake.[5]

* * *

Today's decision is straightforward. The Fifth Circuit artificially narrowed its inquiry into whether Keathley's bankruptcy-schedule omission was the result of inadvertence or mistake by assessing *only* whether he had knowledge of the underlying facts or a potential motive to conceal his personal-injury suit. That was error. Accordingly, we vacate the judgment of the Court of Appeals for the Fifth Circuit and remand the case for further proceedings consistent with this opinion.

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*It is so ordered.*

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, concurring.

The Court's opinion correctly concludes that the Fifth Circuit's approach to judicial estoppel is not defensible on its own terms. I join it in full. I write separately to express doubt about the foundation of the doctrine of judicial estoppel. Judicial estoppel generally prevents a party from asserting a position in one lawsuit that contradicts its position in a previous proceeding. Lower federal courts have applied this doctrine broadly without clear authority to do so,

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[5] The parties also dispute at some length whether bad faith is required for judicial estoppel to apply. See, *e. g.*, Brief for Petitioner 11–24; Brief for Respondent 20–35. In light of our narrow holding—responding only to the analysis used by the Fifth Circuit—we need not resolve any further questions about the application of judicial estoppel in the bankruptcy context.

and with only limited support from this Court's precedents. In a future case, we should reexamine it.

## I

The doctrine of judicial estoppel entered the mainstream in the federal courts only in the past few decades. See Brief for American Association for Justice as *Amicus Curiae* 7–9. By all accounts, it was first recognized in an 1857 decision of the Tennessee Supreme Court. See *Hamilton* v. *Zimmerman*, 37 Tenn. 39; see D. Henkin, Judicial Estoppel—Beating Shields Into Swords and Back Again, 139 U. Pa. L. Rev. 1711, 1719 (1991). A century later, judicial estoppel was still "the minority viewpoint which has encountered inhospitable reception outside the State of Tennessee." *Parkinson* v. *California Co.*, 233 F. 2d 432, 437–438 (CA10 1956). As late as 1980, the D. C. Circuit declined to apply judicial estoppel because it "ha[d] not been followed by anything approaching a majority of jurisdictions, nor [was] there a discernible modern trend in that direction." *Konstantinidis* v. *Chen*, 626 F. 2d 933, 938.

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Despite its slow and late start, judicial estoppel has now become commonplace in the Courts of Appeals.[1] As generally understood, the doctrine can bar a party's suit based on

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[1] Every Court of Appeals has recognized it in one form or another. See, *e. g.*, *Perry* v. *Blum*, 629 F. 3d 1, 8 (CA1 2010); *Clark* v. *AII Acquisition, LLC*, 886 F. 3d 261, 266 (CA2 2018); *Ryan Operations G. P.* v. *Santiam-Midwest Lumber Co.*, 81 F. 3d 355, 358–359 (CA3 1996); *Lowery* v. *Stovall*, 92 F. 3d 219, 223 (CA4 1996); *In re Coastal Plains, Inc.*, 179 F. 3d 197, 204 (CA5 1999); *Reynolds* v. *Commissioner*, 861 F. 2d 469, 472, 474 (CA6 1988); *Cannon-Stokes* v. *Potter*, 453 F. 3d 446, 447–448 (CA7 2006); *Stallings* v. *Hussmann Corp.*, 447 F. 3d 1041, 1047 (CA8 2006); *Milton H. Greene Archives, Inc.* v. *Marilyn Monroe LLC*, 692 F. 3d 983, 986 (CA9 2012); *Eastman* v. *Union Pacific R. Co.*, 493 F. 3d 1151, 1156 (CA10 2007); *Slater* v. *United States Steel Corp.*, 871 F. 3d 1174, 1180 (CA11 2017) (en banc); *Marshall* v. *Honeywell Technology Systems, Inc.*, 828 F. 3d 923, 931 (CADC 2016); *Data Gen. Corp.* v. *Johnson*, 78 F. 3d 1556, 1565 (CA Fed. 1996).

its representations in an entirely unrelated suit against another party. In the Fifth Circuit, for example, judicial estoppel can bar a claim whenever it is inconsistent with a prior position that the party took; a court accepted the prior position; and the party's inconsistency was not inadvertent. *In re Flugence*, 738 F. 3d 126, 129 (2013) (*per curiam*). In this way, judicial estoppel reaches much further than the older doctrine of "equitable estoppel," which requires the party invoking the doctrine to prove that it was itself the object of a previous representation, that it relied on the previous representation, and that it was prejudiced by the change in positions. See *Konstantinidis*, 626 F. 2d, at 937.

Cases such as this one show the doctrine's breadth: The Fifth Circuit applied judicial estoppel to foreclose a lawsuit against a defendant because the plaintiff failed to mention the cause of action on a form in prior bankruptcy proceedings involving an entirely unrelated set of parties. As a result, the defendant was relieved of all liability for injuring the plaintiff, regardless of whether his conduct was tortious and regardless of whether he was in any manner affected by the plaintiff's other proceedings. Other jurisdictions apply judicial estoppel in similar circumstances. See, *e. g.*, *Slater* v. *United States Steel Corp.*, 871 F. 3d 1174, 1176 (CA11 2017) (en banc); *Spaine* v. *Community Contacts, Inc.*, 756 F. 3d 542, 547 (CA7 2014); *Ah Quin* v. *County of Kauai Dept. of Transp.*, 733 F. 3d 267, 271 (CA9 2013); *Payless Wholesale Distributors, Inc.* v. *Alberto Culver* (*P. R.*) *Inc.*, 989 F. 2d 570, 571–572 (CA1 1993).

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## II

Despite the widespread modern adoption of judicial estoppel, its foundation remains questionable.

It is unclear what gives federal courts the authority to bar suits based on judicial estoppel. Often, as in the case below, federal courts treat judicial estoppel as a matter of federal law and feel free to craft their own standards and extend the

doctrine to new contexts.[2] But, the doctrine appears to have no basis in any statute, any Federal Rule of Civil Procedure, or any traditional inherent power of federal courts. Although the doctrine purports to punish litigants to "protect the integrity of the judicial process," *Edwards* v. *Aetna Life Ins. Co.*, 690 F. 2d 595, 598 (CA6 1982), the courts of appeals have not justified it as an exercise of the traditional sanctioning power that courts have been held to have in other contexts, see, *e. g.*, *Link* v. *Wabash R. Co.*, 370 U. S. 626, 629–630 (1962). And, although federal courts often assume that the doctrine can arise from their general equitable authority, see *Slater*, 871 F. 3d, at 1187–1188; *Ryan Operations G. P.* v. *Santiam-Midwest Lumber Co.*, 81 F. 3d 355, 365 (CA3 1996); *In re Flugence*, 738 F. 3d, at 131–132, that "equitable authority is not freewheeling," and requires for its use "a founding-era antecedent," *Trump* v. *CASA, Inc.*, 606 U. S. 831, 841, 846–847 (2025); see also *Trump* v. *Hawaii*, 585 U. S. 667, 716 (2018) (THOMAS, J., concurring). Judicial estoppel appears to lack such an antecedent.[3]

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This Court's precedents do not justify the current state of judicial-estoppel doctrine, either. The Court has apparently

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[2] 2025 WL 673434, *4–*5 (CA5, Mar. 3, 2025) (*per curiam*) (case below); see also *Ryan Operations G. P.*, 81 F. 3d, at 358; *John S. Clark Co.* v. *Faggert & Frieden, P. C.*, 65 F. 3d 26, 28–29 (CA4 1995); *Patriot Cinemas, Inc.* v. *General Cinema Corp.*, 834 F. 2d 208, 215 (CA1 1987); *Warda* v. *Commissioner*, 15 F. 3d 533, 538, n. 4 (CA6 1994).

[3] The Courts of Appeals sometimes instead treat judicial estoppel as a matter of substantive state law in diversity cases, an approach that raises its own set of questions, such as in what sense the doctrine is substantive and whose law governs. *E. g.*, *Kirk* v. *Schaeffler Group USA, Inc.*, 887 F. 3d 376, 383 (CA8 2018). The choice of law for judicial estoppel is a source of deep confusion. See N. Frazer, Reassessing the Doctrine of Judicial Estoppel: The Implications of the Judicial Integrity Rationale, 101 Va. L. Rev. 1501, 1503 (2015); 18B C. Wright, A. Miller, & E. Cooper, Federal Practice and Procedure § 4477.8, p. 591 (3d ed. 2019) ("The question . . . cannot be fully answered"). But, this approach would at least cohere with the treatment of the related, but distinct doctrine of *equitable*

enforced judicial estoppel only a single time, in an original-jurisdiction case that did not resemble many of the cases in which lower courts now apply it. See *New Hampshire* v. *Maine*, 532 U. S. 742 (2001).[4] Because *New Hampshire* was an original-jurisdiction case, the Court understood itself to have greater flexibility in adjudicating the dispute than lower courts have in ordinary diversity actions. Cf. *Massachusetts* v. *Missouri*, 308 U. S. 1, 15 (1939) (explaining, even after *Erie*, that controversies between States are decided based on "the accepted principles of the common law or equity systems of jurisprudence"). Moreover, the Court applied the doctrine based on prior litigation between the same two parties. It estopped New Hampshire from adopting a new position after it had taken the opposite position in a previous suit against the same party before the same Court: New Hampshire "convinced this Court to accept one interpretation" of a decree in a case against Maine, "benefited from that interpretation," and then "urge[d] an inconsistent interpretation to gain an additional advantage at Maine's expense." 532 U. S., at 755. Given these facts, the Court's

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estoppel, which is generally treated as a substantive question governed by the applicable state law under *Erie R. Co.* v. *Tompkins*, 304 U. S. 64 (1938). Cf. *Arthur Andersen LLP* v. *Carlisle*, 556 U. S. 624, 631 (2009); see *Petro Harvester Operating Co.* v. *Keith*, 954 F. 3d 686, 698 (CA5 2020).

[4] *New Hampshire* cited the Court's 1895 decision in *Davis* v. *Wakelee*, 156 U. S. 680, for the proposition that "'[w]here a party assumes a certain position in a legal proceeding, and succeeds in maintaining that position, he may not thereafter, simply because his interests have changed, assume a contrary position, especially if it be to the prejudice of the party who has acquiesced in the position formerly taken by him.'" 532 U. S., at 749 (quoting *Davis*, 156 U. S., at 689). But, *Davis* does not appear to be a judicial-estoppel case. The Court did not invoke the doctrine, and the facts appear to have satisfied the distinctive elements of equitable estoppel: mutuality of parties and reliance by the nonestopped party. 156 U. S., at 690. *Davis* also rejected the argument that an honest mistake could prevent estoppel, *ibid.*, which is consistent with equitable estoppel but, as the Court explains, not judicial estoppel, *ante*, at 655.

decision may well have been justifiable as a matter of equitable estoppel.

*New Hampshire* certainly does not ordain that judicial estoppel should apply in cases like Keathley's, in which his inconsistency was between, on the one hand, representations to creditors in a bankruptcy court, and, on the other hand, representations in a separate tort suit against a stranger to those bankruptcy proceedings. At a minimum, it is difficult to see how application of this doctrine in cases such as this one serves any equitable purpose, or how an interest in "the integrity of the judicial process" could justify it. *Id.*, at 749 (internal quotation marks omitted).

## III

Judicial estoppel has secured widespread acceptance in the Courts of Appeals without any clear authority in statutes, rules of procedure, or this Court's precedents. In a future case, this doctrine merits a closer look.

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JUSTICE SOTOMAYOR, concurring.

Today, the Court correctly holds that, assuming judicial estoppel applies in the bankruptcy context, the Fifth Circuit's exceedingly narrow test for determining whether an inconsistent position was based on inadvertence or mistake is erroneous. I write to address why it may not ever make sense to apply judicial estoppel when bankruptcy proceedings are pending, and why, in any context, judicial estoppel should always turn on the totality of the circumstances.

## I

One of the principal justifications for judicial estoppel is that it prevents a party from using the "'judicial process'" to "derive an unfair advantage" by taking a position in one proceeding and an inconsistent position in a separate proceeding. *New Hampshire* v. *Maine*, 532 U. S. 742, 749, 751 (2001). In bankruptcy, the "unfair advantage" a dishonest